

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff JPMorgan Chase Bank, N.A. moves, pursuant to Civil Code Procedure § 664.6, for an order vacating the dismissal and for entry of judgment under terms of the stipulated settlement.

The Court finds good cause for entering judgment based on the Parties' stipulated settlement, filed March 21, 2025, this Court's Order of March 25, 2025, and the Declaration of Alexander Balzer Carr filed in support of the instant motion. (See *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1183 [entering appealable judgment on trial court order, entered after dismissal, that finally determined the rights of the parties in the action].) No opposition appears in the Court's file.

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Thomas Pollock et al v. Angel Melendez Pimentel et al

25CV000964

DEFENDANT FEDERAL INSURANCE COMPANY'S MOTION TO COMPEL
PLAINTIFF'S FURTHER RESPONSES TO INTERROGATORIES

TENTATIVE RULING: The motion is GRANTED. Plaintiffs shall serve further, verified responses to the Subject Discovery (defined below) within 30 days of the Notice of Entry of Order. Federal is directed to provide Notice of Entry of Order.

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Defendant Federal Insurance Company (“Federal”) moves, pursuant to Code of Civil Procedure section 2030.300,³ to compel Plaintiffs’ further responses to Federal’s Special Interrogatories Nos. 4 and 8 and Form Interrogatories Nos. 7.1 and 9.1 (collectively, “Subject Discovery”). The Motion is brought on the grounds that Plaintiffs supplemental responses, served January 26 and 27, 2026, contain meritless objections and are incomplete because the responses fail to provide (1) the dollar amount they seek to recover under their insurance policy or in this lawsuit, (2) the amount Federal has allegedly failed to pay in excess of the approximately \$2.5 million Federal has paid, (3) an itemized list of their claimed property damage, and (4) the damages they seek in connection with their extra-contractual claims such as fraud, negligence, and unfair competition. (Mem., 1:8-13.)

“Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (§ 2030.220, subds. (a)-(b).) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems an answer to a particular interrogatory is evasive or incomplete, or an objection to an interrogatory is without merit or too general. (§ 2030.300, subd. (a)(1), (3).)

If a timely motion to compel is filed, the propounding party has the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, but “the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-21.) To show an interrogatory seeks relevant, discoverable information “is not the burden of [the party propounding interrogatories]. As a litigant, it is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422.)

In Opposition, Plaintiffs do not attempt to justify their objections. Rather, Plaintiffs argue that their responses provided sufficient facts based on information *then-available* from Federal. Specifically, Plaintiffs’ primary argument is that they were entitled to wait for Federal to complete its required investigation of the loss because Plaintiffs’ extent of damages sought in this lawsuit is dependent upon what Federal will agree to pay. Plaintiffs argue that Federal, as an insurer, has a duty under California Insurance Law to investigate and determine damages on an insurance claim. Thus, Plaintiffs contend, Federal’s use of the discovery process in this action to shift its burden to Plaintiffs is improper and premature. Plaintiffs assert that Federal only informed Plaintiffs on May 8, 2026 that its investigation was completed and, with that confirmation, Plaintiffs will endeavor to evaluate Federal’s investigation and its result.

Federal does not dispute that it has a duty, as an insurer, to investigate and determine Plaintiffs’ insurance claim, including damages. Federal contends that it has completed its investigation and provided to Plaintiffs several reports and costs estimates reflecting the results of its investigation. Nevertheless, Federal argues that its investigation is irrelevant to the Motion,

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

which seeks to compel information regarding the amounts Plaintiffs seek to recover beyond the amount that Federal has already paid.

The Court finds the Subject Discovery is directly relevant to Plaintiffs' claim for damages. The Court understands that Plaintiffs were previously unable to respond with specific information as to the amount and list of damages sought, as that answer depends upon Federal's determination of what it will pay following its investigation. Nevertheless, Plaintiffs now acknowledge that Federal has informed them that its investigation is complete as of May 8. Thus, Plaintiffs' purported justification for not being able to fully respond to the Subject Discovery appears moot. The Court notes that Plaintiffs' final meet and confer communication, on May 18, conveyed to Federal the same point—now that Federal's investigation is complete, Plaintiffs will endeavor to evaluate the investigation and its results. (See Declaration of Brittany Fowler, Ex. 4, pp. 3-4, 6, 8.) While Plaintiffs do not expressly state they will supplement the responses to the Subject Discovery following their evaluation, that certainly was the takeaway the Court gathered.

Based on the foregoing, Federal's motion is GRANTED.

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In The Matter of Nicolas F De Pierola Alvarado

26CV000983

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: An Order to Show Cause for Change of Name (OSC) was entered in this matter on May 08, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. However, there is no proof of publication (POP) in the Court's file. If one is filed before the hearing, the petition will be GRANTED without need for appearance.

If no proof of publication is filed, the matter will be CONTINUED to September 15, 2026, at 8:30 a.m. in Dept. B. Petitioner is *required* to file a new Order to Show Cause with the continued hearing date and, once signed by the Court, publish the order to show cause pursuant to Code of Civil Procedure, section 1277. Failure to comply with the foregoing will result in the Court denying the Petition at the continued hearing date.

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In The Matter of Margareth Mariel Areas

26CV001091

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.